



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

NOV 25 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11996

EXPIRATION DATE: February 28, 1998

1. GRANTEE: Van Waters & Rogers Inc.
Carencro, LA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of a DOT Specification 3A cylinder containing Sulfur dioxide. The cylinder has a leak in the valve which is equipped with a Chlorine Institute Emergency "A" Kit capping device and gasket kit. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.24(b), and 173.34(d) in that the cylinder's safety relief device has a leak.
5. BASIS: This emergency exemption is based on the application of Van Waters & Rogers Incorporated dated November 12, 1997, and additional information dated November 18, 1997 submitted in accordance with 49 CFR 107.117 and the determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sulfur dioxide, liquefied	2.3 (Hazard Zone C)	UN1079	N/A

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 3A cylinder which has a leak in the valve. The cylinder is equipped with a Chlorine Institute Emergency "A" Kit in addition to an Indian Springs Speciality Products Sulfur dioxide gasket kit. The emergency kit and gasket kit must prevent leakage during transportation.

b. OPERATIONAL CONTROLS - The cylinder must be transported by private carrier accompanied by trained emergency personnel.

8. SPECIAL PROVISIONS: The cylinder will be transported from Jacksonville, Arizona to St. Louis, Missouri.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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